

Terms of Use

The ACT 1 Group, Inc. dba AgileOne (“AgileOne”), provides various AgileOne web-based vendor, contractor, and project management software as a service (individually and collectively, “Software”). These Terms of Use (“Terms”) constitute a legally binding agreement made by and between AgileOne and the User, defined below, of the Software (personally and, if applicable, on behalf of the entity for whom you are using the Software; collectively, “User”). The Terms govern your use of the Software we make available to you. AgileOne and User are each respectively “a Party” and collectively “the Parties.”

BY ACCESSING OR USING ANY PART OF THE SOFTWARE, YOU AGREE THAT YOU HAVE READ, UNDERSTOOD AND AGREED TO BE BOUND BY THESE TERMS. IF YOU DO NOT AGREE TO BE SO BOUND, YOU MAY NOT ACCESS OR USE THE SOFTWARE. IF YOU ARE USING THE SOFTWARE ON BEHALF OF ANY BUSINESS OR LEGAL ENTITY, YOU REPRESENT THAT YOU HAVE THE AUTHORITY TO ACCEPT THE TERMS FOR THE BUSINESS. IT IS YOUR RESPONSIBILITY TO CHECK WHETHER THE BUSINESS OR LEGAL ENTITY HAS AGREED TO THESE TERMS AND CONDITIONS.

User or User’s employer has entered into a contract with AgileOne or an AgileOne client for services which are delivered utilizing the Software.

- 1. Permission to Use the Software.** You represent that you are 18 years of age or older. By using the Software on behalf of a client of or a staffing vendor to AgileOne, you are representing to AgileOne that you are permitted to use the Software on behalf of that third party and that your use of the Software constitutes that client or staffing vendor’s acceptance of these Terms. Subject to User’s compliance with these Terms, AgileOne grants to User a limited, personal, revocable, non-exclusive, non-transferable, right to access and use the applicable Software and to use and display the audio and visual information, documents, products (“**Content**”) available in the Software solely for User’s own business purposes. AgileOne has the right to monitor the Software for the purposes of determining that User’s usage complies with these Terms. Any reference to the term Software in these Terms shall include a reference to the term Content unless otherwise expressly stated otherwise. The term “User” shall include all of User’s personnel and suppliers authorized by User to access and use the Software. User may access and use the Software for the limited purposes of posting, responding to, or managing project or staffing requirements, or entering or managing time and attendance information or candidate information. The Software contains trade secrets and User agrees not to decompile, reverse engineer or disassemble the Software, or otherwise reduce the Software code to a human perceivable form. User will prevent any unauthorized copying of the Software and advise any personnel or suppliers who are permitted access to the Software of the restrictions on duplication, reverse engineering and use contained in these Terms. Unauthorized use of the Software, or the sublicensing of the Software, is expressly prohibited. User also shall not create any Internet “link” to the Software site. Nor shall User “frame” or “mirror” any Content contained on, or accessible from, the AgileOne web site on any other server or Internet or computer network-based device. User agrees that User shall be liable for any unauthorized copying, access, reverse engineering or unauthorized use of the Software by User’s employees or agents. User shall not use any information accessible from the AgileOne site in conjunction with any business or commercial enterprise not authorized or contemplated by these Terms. When the underlying agreement between User and AgileOne for which these Terms were executed to support is terminated (for any reason), AgileOne may disable your access to the Software without need for any notice.
- 2. User Conduct.** User agrees to abide by all applicable laws in connection with use or access of the Software. In addition, without limitation, User agrees not to use the Software to: (a) send unsolicited or unauthorized advertising, promotional materials, junk mail, spam, chain letters, pyramid schemes, or any other form of duplicative messages, whether commercial or otherwise; (b) harvest, collect, gather or assemble information or data regarding other users, (c) transmit through or post on the Software unlawful, harassing, libelous, abusive, tortious, defamatory, threatening, harmful, libelous, invasive of another’s privacy, vulgar, obscene or otherwise objectionable material of any kind or nature or material which is harmful to minors in any way; (d) transmit any material that may infringe the intellectual property rights or other rights of third parties, including patents, trademark, trade secret, copyright (e) transmit any material that contains software viruses or other harmful or deleterious computer code, files or programs such as Trojan horses, worms, time bombs, or cancel bots; (f) interfere with or disrupt servers or networks connected to the Software or violate the regulations, policies or procedures of such networks; (g) attempt to gain unauthorized access to the Software, other accounts, computer systems or networks connected to the Software, through password mining or any other means; or (h) harass or interfere with another user’s use and enjoyment of the Software. The Software is controlled by the United States export laws and regulations. No representations are made that the Software is appropriate or available for use in any particular country or state. Any diversion of the Software contrary to United States law is prohibited. Users may not export or re-export the Software except in full compliance with all United States laws and regulations and executive orders, including in particular Parts 740, 742 and 744 of the Export Administration Regulations of the U.S. Department of Commerce.
- 3. Third-Party Product.** AgileOne may incorporate into the Software certain applications, integrations, software, code, systems, products or add-ons not developed by AgileOne (collectively, “Third-Party Products”). User agrees to comply with all third-party terms applicable to any Third-Party Products used in connection with the Software and made available to User, and to not take any action that would cause AgileOne to violate any applicable third-party terms applicable to Third-Party Products.
- 4. Restrictions on Transfer.** User will neither transfer nor assign its rights hereunder. Any attempt to assign or transfer any of User’s rights, duties or obligations hereunder is void and a breach of these Terms.
- 5. Title.** The Software and any copies of the Software, in whole or in part, including Content, translations, compilations, partial copies, modifications, updates, images, applets, photographs, animations, images, video, audio, music or text incorporated in the Software are the sole property of AgileOne. These Terms do not constitute a sale, resale or transfer or contemplate a sale, resale, or transfer of the Software. Nor do they grant an ownership interest in the Software (or any copies thereof). User has only the limited rights of access and use granted by these Terms. AgileOne reserves all rights not expressly granted under these Terms.

6. **User Data.** Data entered into the Software by User is defined as “*User Data*”. AgileOne may access User’s account, including its User Data, to respond to service or technical problems or as stated in these Terms. User shall have sole responsibility for the accuracy of all User Data entered by User. AgileOne may disclose User Data upon the order of any court or government agency or upon a good faith belief such information is needed in order to comply with the law in any applicable jurisdiction.
7. **Data Protection: “Personal Data,” “Controller,” “Processor,” and “Data Subject Consent”** shall have the meaning given in the General Data Protection Regulation (“GDPR”). User acknowledges that Personal Data supplied or processed by the Software may be protected under various data protection laws. AgileOne and User shall each comply with their respective obligations under any applicable data protection laws, including the GDPR. AgileOne is Controller of the data in the Software.
8. **Submissions.** AgileOne will own all rights, title and interests, including all related intellectual property rights, to any suggestions, ideas, feedback, recommendations, or other information provided by User relating to the Software (“*Submissions*”) and User hereby assigns such Submissions to AgileOne free of charge to the maximum extent of the law and should any applicable law prevent or void such a transfer (or this section) User shall instead grant AgileOne a perpetual, transferable, worldwide, irrevocable, non-exclusive, royalty free license to use such Submission for any lawful purpose as AgileOne deems appropriate. AgileOne may use such Submissions without payment or consideration to User. Further, User agrees not to use any such Submissions for its own purposes except in conjunction with the allowed business use of the Software.
9. **Warranty and Disclaimer.** AgileOne represents and warrants that the Software will perform in substantial accordance with the product specifications and demonstrations provided, but AgileOne makes no other representation, warranty, or guaranty as to the reliability, timeliness, quality, suitability, truth, availability, accuracy or completeness of the Software or any services. AgileOne does not represent or warrant that: (i) the use of the Software or services will be secure, timely, uninterrupted or error-free or operate in combination with any other hardware, software, system or data; (ii) the Software and services will meet User’s requirements or expectations; (iii) any stored User Data will be accurate or reliable; (iv) the quality of any products, services, information, or other material purchased or obtained by User through the Software will meet User’s requirements or expectations; (v) errors or defects will be corrected; and, (vi) except for reasonable commercial efforts to protect against such viruses, that the Software or the server(s) are free of viruses or other harmful components. The Software and the AgileOne web site are provided to User strictly on an “as is, as available” basis. All conditions, representations and warranties, whether express, implied, statutory or otherwise, including, without limitation, any implied warranty of merchantability, or fitness for a particular purpose are hereby disclaimed to the maximum extent (to include length) as permitted by applicable law by AgileOne. The Software is intended for use only in business but if you are dealing with AgileOne as a consumer your statutory rights are not affected.
10. **Limitation of Liability.** In no event shall either party be liable for any indirect, punitive, special, exemplary, incidental, consequential or other damages of any type or kind (including loss of data, revenue, profits, use or other economic advantage, or cost of obtaining substitute goods or services). With the exception of fraud or its intentional misconduct or disclosure of confidential information, AgileOne’s aggregate liability for any claim or liability: (i) arising out of or relating to or connected to the use of or the Software or the services (including but not limited to User’s use or inability to use the Software, or for any data obtained from or through the Software or services) under these Terms; or (ii) from performance, based in contract, negligence, strict liability or otherwise, whether or not it had any knowledge, actual or constructive, that such damages might be incurred; or (iii) for any interruption, inaccuracy, error or omission, regardless of cause, shall not exceed the fees actually paid by User for services performed by AgileOne pursuant to any separate agreement entered into between User and AgileOne in the three (3) month period immediately preceding the event giving rise to such claim or liability. The foregoing limitations of liability shall apply despite any failure of the essential purpose of any limited remedy stated herein. If any limitation(s) above do not apply, AgileOne’s liability shall be limited to the maximum extent allowed by applicable law. User expressly states that it has been given a sufficient opportunity to review this limitation of liability with independent legal counsel of its own choosing and has found this limitation of liability to be acceptable and reasonable to itself and the purposes of these Terms and the surrounding circumstances. Further User agrees not to contest the validity of this limitation of liability.
11. **User Indemnification.** Subject to AgileOne’s indemnification obligation below, User shall indemnify, defend and hold AgileOne and its parent, subsidiaries, affiliates, officers, directors, employees, and agents, free and harmless from and against any and all claims, costs, damages, losses, liabilities, and expenses (including all attorneys’ fees and costs) (“*Claim*”) arising out of or in connection with User’s use of the Software to include, but not limited to: (i) failure to comply with applicable data protection laws, (ii) disclosure of AgileOne or other users’ confidential information, or (iii) breach of these Terms by User or any of User’s employees, agents, suppliers or independent contractors.
12. **AgileOne Indemnification.** AgileOne agrees to indemnify, defend and hold User and its parent, subsidiaries, affiliates, officers, directors, employees, and agents, free and harmless from and against any Claims arising out of: (i) any infringement, violation or misappropriation of a copyright, patent, trademark, trade secret or other proprietary right or intellectual property of any third party by AgileOne’s Software; or (ii) disclosure of User confidential information.
13. **Enforcement.** In the event of the threatened or actual breach of these Terms, either Party shall have no adequate remedy at law and shall be entitled to (a) all equitable remedies, including immediate injunctive and other equitable relief (without bond and without the necessity of showing actual monetary damages) enjoining the other Party and every other party from breaching these Terms, (b) reasonable attorneys’ fees incurred in enforcing its rights hereunder, and (c) any other legal remedies that may be available.

14. **Consent to Monitoring and Termination.** User agrees that AgileOne may monitor User's use of the Software and AgileOne may, in its sole discretion, terminate your access to the Software. User agrees to destroy any copies in any form of the Software (if any), Content, or accompanying documentation in its possession upon termination of these Terms. All the sections which by their nature would survive termination of these Terms (to include but not limited to: indemnification, limitation of liability, User restrictions, enforcement, title, etc.) shall survive termination of these Terms.
15. **Governing Law.** These Terms shall be governed by and enforced in accordance with the laws of the jurisdictions in which AgileOne is incorporated. The parties submit to the exclusive jurisdiction of the national courts of the jurisdiction in which AgileOne is incorporated. If the User is located in the UK or the EEA, these Terms shall be subject to the laws of Ireland and the courts of Ireland shall have exclusive jurisdiction to determine any issue between the parties.
16. **Notices and Electronic Communications.** User hereby consents to receiving and transacting with AgileOne by electronic means. AgileOne may deliver notice to User by email, posting a notice on the site where the Software resides, or any other method AgileOne chooses, and such notice will be effective upon dispatch. If User gives a notice to AgileOne, that notice will be effective when received by AgileOne and User must use the registered address of AgileOne.
17. **Waiver.** The failure of either Party to enforce any right or provision in these Terms shall not constitute a waiver of such right or provision unless acknowledged and agreed to by such Party in writing.
18. **Unenforceable Provisions.** If any provision of these Terms is held by a court of competent jurisdiction to be void or unenforceable, then such provision(s) shall be construed, and if needed judicially revised (as nearly as possible), to reflect the intentions of the void or unenforceable provision(s), and all other provisions shall remain in full force and effect.
19. **Entire Agreement and Revisions.** These Terms sets forth the entire agreement and understanding between the Parties regarding the subject matter hereof and supersedes any prior understanding or agreements, whether written or oral, regarding the same subject matter between User and AgileOne. AgileOne may, in its sole discretion, update these Terms at any time by posting a revised version on the site where the Software is hosted. Reasonable prior notice of any modification or update will be provided where such modification or update includes a change that limits User's rights or increases User's obligations hereunder. Any update to the Terms will take effect when posted or upon the date set forth in the applicable notice (as applicable, the "Effective Date"). User's continued use of the Site or the Services after the Effective Date of a revised version of these Terms constitutes User's acceptance of and agreement to be bound by the Terms as revised. Notwithstanding anything in these Terms to the contrary, if User and AgileOne have entered into a written agreement governing User's use of the Software (a "Prior Agreement"), User's use of the Software shall be governed by the Prior Agreement and the Prior Agreement shall control in case of any conflict with these terms.

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